

26NNCV03484 26NNCV03484

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[TENTATIVE] ORDER DENYING DEFENDANTS 365 DISPOSAL & RECYCLING, INC'S MOTION TO TRANSFER VENUE

I. INTRODUCTION

On May 4, 2026, Plaintiff Frank Rodriguez ("Plaintiff") filed this action against Defendants 365 Disposal & Recycling, Inc. ("365 Disposal"), Horacio Rodriguez Galvan, the City of Brea, the County of Orange, and Does 1 through 50, asserting causes of action for negligence, dangerous condition of public property, and negligent hiring, training, supervision, and retention arising from an alleged workplace accident at the Olinda Alpha Landfill in Brea, California.

On July 9, 2026, Defendant 365 Disposal & Recycling, Inc. ("Defendant") filed the instant motion to transfer venue to Orange County pursuant to Code of Civil Procedure section 397, subdivisions (a) and (c), concurrently with its answer to the Complaint. No opposition or reply has been filed.

II. LEGAL STANDARD

"On timely motion, the court must order a transfer of venue "when the court designated in the complaint is not the proper court." (Code Civ. Proc., §§ 396b, 397(a).) A motion to transfer venue on grounds the designated court is not proper must file and serve the motion before or at the time of filing an answer, demurer, or motion to strike. (Code Civ. Proc., § 396b.) "Venue is determined based on the complaint on file at the time the motion to change venue is made." (Brown v. Superior Court (1984) 37 Cal.3d 477, 482; Haurat v. Superior Court for Los Angeles County (1966) 241 Cal.App.2d 330, 337 ["Venue is determined on the basis of the complaint as it stands at the time the motion to change is made, and the plaintiff is not permitted to make a subsequent election of theories by proposed amendments thereto"].) In an action involving personal injuries, a venue is proper where a defendant resides or where the injuries occurred. (Code Civ. Proc., § 395(a).)

Additionally, the Court may change the venue when the convenience of witnesses and ends of justice would be promoted by the change. (Code Civ. Proc., § 397, subd. (c).)

III. ANALYSIS

Venue is determined from the complaint on file at the time the motion to change venue is made. (Brown v. Superior Court (1984) 37 Cal.3d 477, 482; Haurat v. Superior Court (1966) 241 Cal.App.2d 330, 337 ["Venue is determined on the basis of the complaint as it stands at the time the motion to change is made"].) In an action for personal injuries, venue is generally proper in the county where a defendant resides or where the injury occurred. (Code Civ. Proc., § 395, subd. (a).) As to a corporate defendant, venue is also proper in the county where the corporation has its principal place of business. (Code Civ.

Proc., § 395.5.)

Timeliness

As a preliminary matter, the motion is timely. Defendant has filed and served the motion concurrently with its answer.

Transfer Under Code of Civil Procedure Section 397, Subdivision (a)

Transfer is not warranted under Code of Civil Procedure section 397, subdivision (a).

Here, the Complaint alleges that venue is proper in Los Angeles County because Defendant 365 Disposal & Recycling, Inc. maintains its principal place of business in Los Angeles County, Defendant Horacio Rodriguez Galvan resides and/or works in Los Angeles County, the employment and dispatch activities occurred in Los Angeles County, and a substantial portion of the acts and omissions giving rise to Plaintiff's claims occurred or originated there. (Complaint., ¶ 9.) The Complaint separately alleges that 365 Disposal's principal place of business is located in Sun Valley, California, within Los Angeles County. (Complaint., ¶ 3.)

Defendant does not dispute these allegations or submit evidence showing that 365 Disposal's principal place of business is located outside Los Angeles County. Instead, Defendant relies primarily on the fact that the accident occurred in Orange County and that Defendants County of Orange and City of Brea are located there.

Those facts establish that Orange County may also be a proper venue, but they do not establish that Los Angeles County is an improper venue. Because Defendant has not demonstrated that Plaintiff filed the action in an improper court, transfer is not warranted under section 397, subdivision (a).

Transfer Under Code of Civil Procedure Section 397, Subdivision (c)

Transfer is also not warranted under Code of Civil Procedure section 397, subdivision (c).

A court may transfer an action when "the convenience of witnesses and the ends of justice would be promoted by the change." (Code Civ. Proc., § 397, subd. (c).) The moving party must establish both that the convenience of witnesses would be served and that the ends of justice would be promoted by the transfer. (*Lieberman v. Superior Court* (1987) 194 Cal.App.3d 396, 401.)

To make the required showing, the moving party ordinarily must identify the witnesses whose convenience is at issue, describe the nature and materiality of their anticipated testimony, and explain the specific manner in which trial in the selected venue would inconvenience them. (*Peiser, supra*, 50 Cal.2d at p. 607; *Rycz, supra*, 81 Cal.App.5th at p. 836.) General or conclusory assertions concerning witness convenience are insufficient.

Here, Defendant asserts that Orange County is a more convenient forum because the incident occurred there and "most of the witnesses" reside there. (Motion, p. 5.) However, Defendant submits no declaration identifying any particular witness, stating where any witness resides, describing the substance or materiality of any witness's anticipated testimony, or explaining how appearing for trial in Los Angeles County would inconvenience that witness. The motion also does not identify any documents, physical evidence, or other circumstances that would make trial in Los Angeles County materially burdensome.

Defendant likewise offers no evidentiary basis for its assertion that transferring the action would promote judicial economy or the ends of justice. Although the incident occurred in Orange County and the claims against the public entity defendants concern property located there, those circumstances alone do not satisfy Defendant's burden under section 397, subdivision (c).

Thus, Defendant has not demonstrated that either the convenience of witnesses or the ends of justice would be promoted by transferring this action to Orange County.

The motion to transfer venue is DENIED.

IV. ORDER

The Court DENIES Defendant's motion to transfer venue.

Defendant is to give notice.

Dated: August 10, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT